

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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SUMMONS

NICOLE DOS SANTOS,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, DETECTIVE JUSTIN
SOLOMON, Tax No. 946280, LIEUTENANT MICHAEL
KATINAS, Tax No. 936846, POLICE OFFICER VIRA
ALVAREZ, Tax No.959272, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

Plaintiff designates Richmond
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 19, 2024

David M. Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JUSTIN SOLOMON, Tax No. 946280, 121st Precinct Detective Squad,
970 Richmond Ave, Staten Island, NY 10314
LIEUTENANT MICHAEL KATINAS, Tax No. 936846, 121st Precinct Detective Squad,
970 Richmond Ave, Staten Island, NY 10314
POLICE OFFICER VIRA ALVAREZ, Tax No.959272, Internal Affairs Bureau

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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NICOLE DOS SANTOS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JUSTIN
SOLOMON, Tax No. 946280, LIEUTENANT MICHAEL
KATINAS, Tax No. 936846, POLICE OFFICER VIRA
ALVAREZ, Tax No.959272, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

Defendants.

----- X

Plaintiff NICOLE DOS SANTOS, by her attorneys, Jacobs & Hazan, PLLC, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on July 19, 2021, at approximately 6:00 am she was lawfully inside of her apartment located at 183 Hickory Ave, Staten Island, New York, at which time defendants arrived at her home and unlawfully handcuffed, searched, frisked, and falsely arrested plaintiff. The defendant police officers falsely arrested plaintiff for allegedly violating an Order of Protection that did not exist, and the defendants did not possess any objective facts that would lead a reasonable police officer to believe there was an Order of Protection against plaintiff. At no time relevant herein did plaintiff commit a crime, nor did the police officers possess an objective factual basis to establish probable cause to believe she committed a crime or violated the law. Defendants transported plaintiff to the 121st Precinct Detective Squad against her will, whereat she was unlawfully searched, fingerprinted, photographed, and unlawfully detained in a room for many hours, and she was unlawfully handcuffed the entire time she was detained at the precinct. Plaintiff was interrogated by the defendants at the precinct. After plaintiff was interrogated, defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280 realized that he did not conduct a proper investigation into whether there was an Order of Protection against plaintiff, and for the first time he ran plaintiff's name to

see whether there were any active Orders of Protection against her. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, realized that there were no Orders of Protection issued against plaintiff and defendants should not have placed plaintiff under arrest. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280 told plaintiff that he made a mistake in his investigation about whether there was an Order of Protection against plaintiff and while plaintiff was detained at the precinct he realized that there was no Order of Protection against plaintiff and that he made a mistake. Plaintiff was unlawfully detained at the 121st Precinct Detective Squad for many hours. Plaintiff was finally released from custody after defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, realized that defendants had not have a legal basis to arrest plaintiff, and defendants charged her with a crime that she did not commit. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280 voided plaintiff's arrest and released her from custody at the 121st Precinct Detective Squad without being charged with any crime. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of her Constitutional and common law rights when the individual defendants unlawfully frisked, searched, and falsely arrested plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff NICOLE DOS SANTOS is a resident of the state of New York.
3. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, was at all times relevant herein, assigned to the 121st Precinct Detective Squad.
5. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, is being sued in his individual and official capacity.
6. Defendant LIEUTENANT MICHAEL KATINAS, Tax No. 936846, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant LIEUTENANT MICHAEL KATINAS, Tax No. 936846, was at all times relevant herein, assigned to the 121st Precinct Detective Squad.
8. Defendant LIEUTENANT MICHAEL KATINAS, Tax No. 936846, is being sued in his individual and official capacity.
9. Defendant POLICE OFFICER VIRA ALVAREZ, Tax No. 959272, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER VIRA ALVAREZ, Tax No.959272, was at all times relevant herein, assigned to the 122nd and is presently assigned to the Internal Affairs Bureau.

11. Defendant POLICE OFFICER VIRA ALVAREZ, Tax No.959272, is being sued in his individual and official capacity

12. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. By way of background, on July 12, 2021, plaintiff's ex-girlfriend went to the 122nd Precinct stationhouse and filed a complaint with defendants wherein she alleged that from July 5, 2021 to July 11, 2021 plaintiff violated an active Order of Protection, issued under Docket No. CR-003192-20RI when plaintiff allegedly sent her text messages.

19. The allegations made against plaintiff by plaintiff's ex-girlfriend at the 122nd Precinct on July 12, 2021, were completely fabricated, and there was no Order of Protection ever issued against plaintiff.

20. Plaintiff's ex-girlfriend did not provide defendants a copy of the Order of Protection that she alleged plaintiff violated because no such Order of Protection existed.

21. Additionally, the criminal court docket number, CR-003192-20RI, that plaintiff's ex-girlfriend alleged the Order of Protection was issued against plaintiff under was a criminal case in which plaintiff's ex-girlfriend was a defendant, not plaintiff, and any Orders of Protection issued in that case were against plaintiff's ex-girlfriend, not plaintiff.

22. Although it would be necessary for the defendants to see the terms of an Order of Protection to determine whether an individual violated the Order of Protection, the defendants did not make any attempt to obtain a copy of the Order of Protection that plaintiff was accused of violating.

23. Defendants did not look up the criminal docket where plaintiff's ex-girlfriend alleged the Order of Protection was allegedly issued because defendants would have realized plaintiff's ex-girlfriend, not plaintiff was the criminal defendant in that case and no Order of Protection was ever issued against plaintiff.

24. The complaint made by plaintiff's ex-girlfriend was referred to the 121st Precinct Detective Squad and defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, was assigned to investigate the complaint made against plaintiff by her ex-girlfriend further,

25. However, defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, either never conducted any investigation into the matter whatsoever, or if he did conduct an investigation then the investigation was conducted in an incompetent and reckless manner.

26. If defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, had run plaintiff's name in the NYPD's computer system to check to see whether there were any Orders of Protection pending against her, he would have conclusively determined that there were no Orders of Protection pending against plaintiff and therefore, she could not have violated an Order of protection.

27. If Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, had run plaintiff's name in the NYPD's computer system he would have also learned that there was an active Order of Protection against plaintiff's ex-girlfriend that placed restrictions on the manner in which the ex-girlfriend could communicate with plaintiff.

28. At no time relevant herein was there an Order of Protection issued against plaintiff that barred her from communicating or going near plaintiff's ex-girlfriend. In fact, at no time relevant herein has there ever been any Order of Protection issued against plaintiff.

29. At no time prior to placing plaintiff under arrest and charging plaintiff with Criminal Contempt for violating an Order of Protection did the defendant police officers obtain a copy of the Order of Protection that plaintiff was accused of violating in order to determine whether the allegations made by plaintiff's ex-girlfriend against plaintiff amounted to a violation of the terms of the alleged Order of Protection

30. At no time prior to placing plaintiff under arrest and charging plaintiff with Criminal Contempt for violating an Order of Protection did the defendant police officers possess any objective facts that would lead a reasonable police officer to believe plaintiff violated an active Order of Protection, that an Order of protection against plaintiff existed, or that plaintiff committed any crime or violated the law.

31. On July 19, 2021, at approximately 6:00 am plaintiff was lawfully inside of her apartment located at 183 Hickory Ave, Staten Island, NY, at which time the defendant officers arrived at her home, knocked on plaintiff's front door, and when plaintiff answered the door the defendants unlawfully handcuffed and falsely arrested her, without probable cause to believe she committed a crime or violated the law.

32. The police officers falsely arrested plaintiff for allegedly violating an active Order of Protection that barred her from sending text messages to her ex-girlfriend, but no such Order of Protection existed.

33. At no time relevant herein did plaintiff commit a crime, nor did the police officers possess an objective factual basis to establish probable cause to believe she committed a crime or violated the law.

34. Defendants unlawfully handcuffed plaintiff and falsely arrested her, without probable cause or legal justification.

35. Defendants transported plaintiff to the 121st Precinct Detective Squad against her will, whereat she was unlawfully searched, fingerprinted, photographed, and detained in a room where she remained handcuffed for the entire time she was in custody at the 121st Precinct Detective Squad.

36. Defendants interrogated plaintiff about the false allegations made against her by her ex-girlfriend that plaintiff was violated an active Order of Protection.

37. Plaintiff told defendants there was no active Order of Protection against her and no such Order of Protection ever existed.

38. Plaintiff also explained to defendants that the criminal docket number from where the defendants claim the Order of Protection was issued was a criminal matter where plaintiff's ex-girlfriend was the defendant and not plaintiff.

39. At some point while plaintiff was detained at the 121st Precinct Detective Squad, defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, recognized that he did not

conduct a proper investigation into whether there was an active Order of Protection against plaintiff and he finally ran plaintiff's name to determine whether there were any active Orders of Protection against her.

40. After plaintiff was unlawfully detained in a room at the 121st Precinct Detective Squad for many hours, defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280, told plaintiff that he recognized that he made a mistake when he arrested plaintiff and charged her with Criminal Contempt for violating an Order of Protection because jupon running plaintiff's name in the NYPD database he determined that there was no Order of Protection issued against plaintiff and that she did not commit the crime of Criminal Contempt or any other crime.

41. Defendant DETECTIVE JUSTIN SOLOMON, Tax No. 946280 voided plaintiff's arrest wherein she was charged by defendants with Criminal Contempt, and he released plaintiff from custody from the 121st Precinct Detective Squad after she had been unlawfully detained for many hours,

42. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

43. Plaintiff was deprived of her Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, and falsely arrested plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

44. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

45. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

46. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

47. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

48. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

49. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

50. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

51. The unlawful stop, question, frisk, search, false arrest, and false imprisonment used by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

52. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully seized, searched, frisked, and caused plaintiff to be unlawfully questioned, frisked, searched, seized, falsely arrested and falsely imprisoned, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

59. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal search of plaintiff, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search plaintiff.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

65. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

67. Defendants failed to intervene to prevent the unlawful conduct described herein.

68. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Plaintiff was unlawfully questioned, frisked, searched, and falsely arrested without an objective factual legal basis to seize, and arrest plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

72. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally questioned, frisked, searched, and falsely arrested, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

73. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth and Fourteenth Amendment Rights of members of the public.

74. Defendant City of New York is liable to plaintiff for the damages she suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, and falsely arrested members of the public when there is no factual basis to suspect the individual has committed a crime.

75. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

76. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

77. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, and falsely arresting individuals without a factual basis supporting a legal reason to do so.

78. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

79. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, and arrests.

80. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

81. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

82. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff NICOLE DOS SANTOS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
July 19, 2024

By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 19, 2024

David M. Hazan

DAVID M. HAZAN